

The Institutional Buffering Hypothesis:

How Pre-Sentence Report Systems Moderate the Effect of Welfare Support on Sentencing Decisions

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THE HYPOTHESIS

In jurisdictions with established PSR systems, welfare support information has attenuated effects on sentencing due to routine exposure.

In jurisdictions without such systems, identical information produces disproportionately large effects due to structural information scarcity.

① INTRODUCTION

Sentencing decisions depend on the information available to decision-makers, yet institutional mechanisms for providing welfare-related information vary dramatically across jurisdictions.

England and Wales maintain a formal Pre-Sentence Report (PSR) system, whereas Japan lacks any equivalent public mechanism.

② OBJECTIVES — THE INSTITUTIONAL BUFFERING HYPOTHESIS

We extend focal concerns theory (Steffensmeier et al., 1998) by incorporating perceived redeemability (Ulmer et al., 2023) as a mediating mechanism.

③ MATERIALS & METHODS

A 2 (Country: Japan vs. England/Wales) × 3 (Support: none, emotional, structural) between-subjects vignette experiment with 1,200 participants (pre-registration prepared for OSF).

Participants evaluate a functionally equivalent shoplifting case involving a 67-year-old defendant and make a binary sentencing decision (custody vs. community sentence).

Analysis: hierarchical logistic regression and moderated mediation (PROCESS Model 8).

④ DESIGN

		SUPPORT		
		No support	Emotional	Structural
COUNTRY	Japan (no PSR)	n = 200	n = 200	n = 200
	England & Wales (PSR system)	n = 200	n = 200	n = 200

Figure A. 2 × 3 between-subjects design (total N = 1,200; 600 per country). Outcome: custody vs. community sentence.

⑤ HYPOTHESIZED MODEL

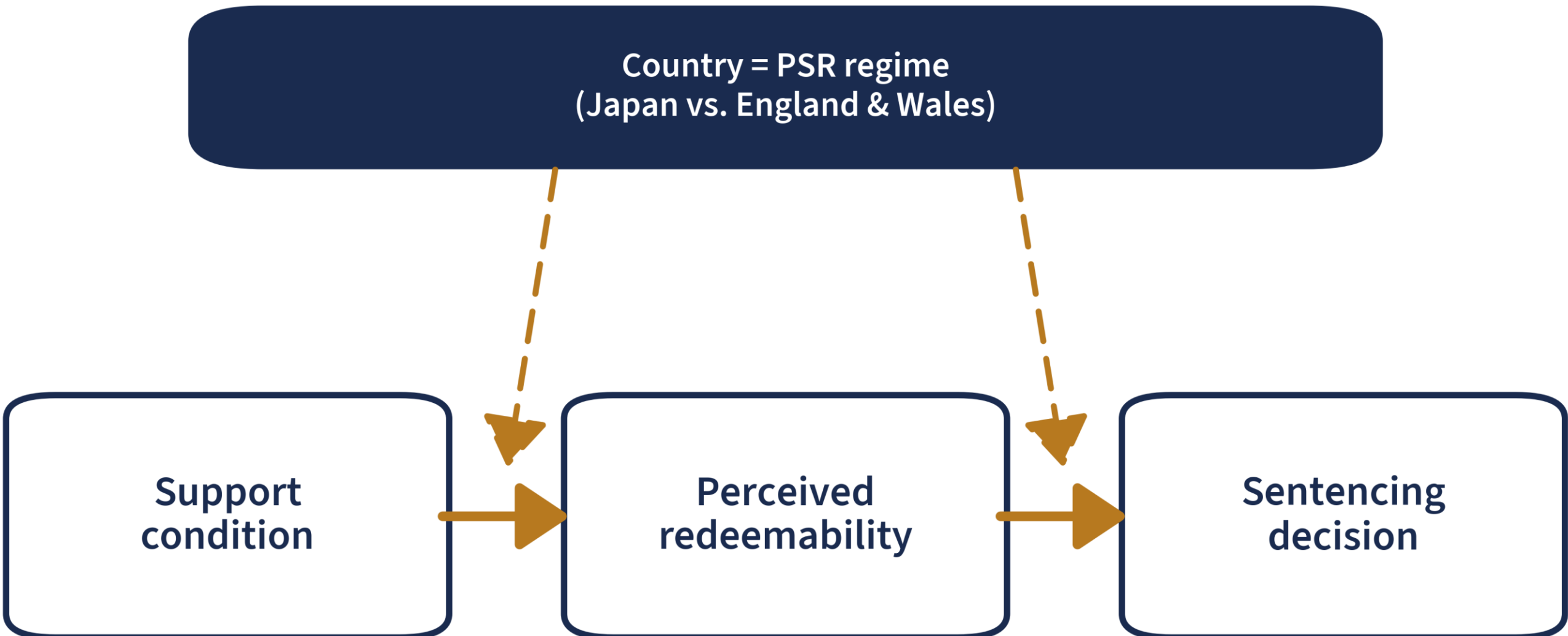


Figure B. Hypothesized moderated mediation (PROCESS Model 8): country (PSR regime) moderates the effect of support information, mediated by perceived redeemability. Hypothesized predictions (pre-registration in preparation) — no data yet.

⑥ EXPECTED RESULTS (PREDICTIONS)

We predict a significant Country × Support interaction: structural support will increase community sentence rates more strongly in Japan (high information scarcity) than in England/Wales (information saturation), mediated by perceived redeemability.

KEYWORDS

sentencing decisions · pre-sentence reports · focal concerns theory · cross-national comparison · redeemability

STATUS & TIMELINE

Pre-registration prepared (OSF; to be registered before data collection). Scenarios drafted; practitioner consultation for legal functional equivalence planned. Data collection planned for 2027.

⑦ CONCLUSIONS

This study provides the first experimental test of how institutional information environments moderate support effects on sentencing across jurisdictions.

Findings will inform debates about whether Japanese punitiveness reflects cultural disposition or institutional information deficit.



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